

Superior Court of the State of California
County of Orange

TENTATIVE RULINGS
DEPARTMENT C27
JUDGE BRADLEY ERDOSI

LAW AND MOTION IS HEARD ON MONDAYS AT 2:00 P.M.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 10:00 a.m. on the date of the afternoon hearing. However, ongoing proceedings or other pressing matters may delay the posting of tentative rulings. Additionally, tentative rulings may not be posted in every case. Please **do not** call the department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on Tentative Rulings: If all counsel intend to submit on the Court's tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5227. Please do not call the department unless **all** parties submit on the tentative ruling. If all sides submit on the Court's tentative ruling and so advise the Court, the tentative ruling will become the Court's final ruling and the prevailing party is ordered to give notice of the ruling and prepare an order for the Court's signature, if appropriate, under Cal. R. Ct. 3.1312.

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TENTATIVE RULINGS

July 6, 2026

	Case Name	Tentative
103	2021-01186369 Kidān vs. Chartwell Staffing Services Inc.	Motion for Leave to File Amended Complaint Plaintiff Adam Kidān’s motion for leave to file his proposed third amended complaint is granted. [ROA #930.] Plaintiff is to file his third amended complaint (“TAC”) no later than July 9, 2026. The court will hear from counsel whether continuance of the trial to 11/30/36 is necessary or appropriate. Facts This case involves the alleged hostile takeover of Chartwell Staffing Services, Inc. by Madison Resource Funding, LLC. Kidān brings this action directly to challenge Madison’s acquisition of Chartwell, and derivatively to remedy the harm to Chartwell caused by Madison in the process through its breaches of contract and self-dealing. This action was begun on 2/26/21. [Complaint (ROA #2).] The currently operative complaint is the second amended complaint (“SAC”) against Defendants Chartwell Staffing Services (nominal Defendant), Madison Resource Funding, LLC, Coast to Coast Staffing, W. Holmes Lilley, Leonard Tierney, and Richard Chipman. [ROA #371.] The parties stipulated to extend the five-year deadline to 12/31/2026. [1/21/26 Minute Order (ROA #910).] The current trial date is on 9/14/26, with pre-trial deadlines based on that trial date [<i>Id.</i>] On 3/17/26, Plaintiff filed the pending motion for leave to amend his complaint. [ROA #930.] According to Plaintiff in his reply brief, he sought a stipulation prior to filing but Defendant Lilley refused. [Reply (ROA #1050) at 3:7-8.] Plaintiff’s counsel declares that the motion “seeks leave to make two amendments to Plaintiff’s Complaint: (1) adding the legal theories of conversion and violation of Penal Code § 496 (civil theft) based on the same factual allegations asserted since the outset of this case; and (2) clarifying his prayer for damages to conform to the factual allegations already contained in the Second Amended Complaint.” [Allen Decl. (ROA #928), ¶ 5.] Counsel considers the proposed third amended complaint to be a “cleanup amendment” or one effecting “conforming amendments.” [<i>Id.</i>, ¶ 6.] Counsel started working on this case in earnest in late December 2025 or early January 2026. He reviewed the pleadings, discovery and evidence in the case in order to assist with trial preparation and strategy. He cannot pinpoint the exact date but at some point in January or February he started contemplating new legal theories that could be added to the complaint based on the existing facts and to confirm to evidence. [Allen Decl., ¶ 6.] Defendants Madison Resource Funding, LLC, Coast to Coast Staffing, Leonard Tierney, and Richard Chipman have not opposed Plaintiff’s motion to amend. Defendant W. Holmes Lilley has. [Opposition (ROA #1040).]

On 4/28/26, Defendant Lilley filed his motion for summary judgment or adjudication that is set for hearing on 7/20/26. [ROA #982.] According to Plaintiff, he had no advance notice of the motion. [Reply at 3:10-11.]

Legal Standard

The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. Code Civ. Proc. § 473(a)(1). The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. Code of Civ. Proc. § 473(a)(1). Additionally, any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order. Code of Civ. Proc. § 576.

Ordinarily, the court does not consider the validity of the proposed amended pleading in deciding whether to grant leave to amend. *Kittredge Sports Co. v. Superior Court (Marker, U.S.A.)* (1989) 213 Cal.App.3d 1045, 1048; Cal. Prac. Guide, *Civil Procedure before trial* (Rutter) 6:644. Grounds for demurrer or motion to strike are premature. *Id.* After leave to amend is granted, the opposing party will have the opportunity to attack the validity of the amended pleading. *Id.* See *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760 (“[W]e believe that the better course of action would have been to allow Atkinson to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings”) (citing *Kittredge*).

A motion to amend a pleading before trial must: (1) include a copy of the proposed amendment or amended pleading; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, by page, paragraph, and line number, the additional allegations are located. CRC 3.1324(a). A separate declaration must accompany the motion and must specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. CRC 3.1324(b).

California courts generally allow great liberality, at all stages of the proceeding, in permitting the amendment of pleadings in order to resolve cases on their merits. *IMO Development Corp. v. Dow Corning* (1982) 135 Cal.App.3d 451, 461. This liberality only applies so long as there is no prejudice to the opposing party. *Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564. Denial of leave to amend is appropriate where inexcusable delay and probable prejudice to the opposing party is shown. This may happen where a proposed amendment opens up an entirely new field of inquiry without any satisfactory explanation as to why the major change in point of attack had not been made long before trial. *Estate of Murphy v. Gulf Ins. Co.* (1978) 82 Cal.App.3d 304, 311.

If the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party, the judge has discretion to deny leave to amend. *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490; *Melican v. Regents of Univ. of Calif.* (2007) 151 Cal.App.4th 168, 176; *Fisher v. Larsen* (1982) 138 Cal.App.3d 627, 649.

A particular species of delay and prejudice is waiting until the defendant has filed a motion for summary judgment *and then* seeking amendment. Courts have found that this situation, which inherently creates prejudice to the defendant, justifies denial of motion to amend where the plaintiff's delay was unwarranted. *Falcon v. Long Beach Genetics, Inc.* (2014) 224 Cal.App.4th 1263, 1280 (affirming denial of leave to amend in face of MSJ); *Melican v. Regents of Univ. of Calif.* (4/3 2007) 151 Cal.App.4th 168, 176 (same). *See also Fisher v. Larsen* (1982) 138 Cal.App 3d 627, 649 (finding where plaintiff knew for over five months that certain claims had not been properly pleaded, and took no action to amend until after a summary judgment had been granted against it, it was not an abuse of discretion to deny leave to amend the complaint); *Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150.

Deprivation of the right to bring a motion for summary judgment (or having to incur the costs to bring two different motions because of an amendment) is not de minimus. *See Polibrid Coatings, Inc. v. Superior Court* (2003) 112 Cal.App.4th 920 (finding, in the context of fast track rules, that party's statutory right to bring a motion for summary judgment is paramount).

As a general rule, the additional time and money of conducting non-duplicative discovery is not considered prejudice unless discovery had already closed and/or trial is set to begin. *Magpali v. Farmers Group, Inc.* (1996) 47 Cal.App.4th 1024, 488.

Normally, if the plaintiff is willing to delay trial of his complaint, that is sufficient to make acceptable permission to amend along with the trial continuance. *Mesler v. Bragg Management Co.* (1985) 39 Cal.3d 290, 297. But increased costs and delay of trial have been found to be the kind of prejudice that supports denial of a motion to amend. *Estate of Murphy v. Gulf Ins. Co.* (1978) 82 Cal.App.3d 304, 311 (affirming denial of leave to amend where jury was empaneled when plaintiff sought to amend to add issue not covered in discovery).

The court has the discretion to continue the trial and condition amendment on the payment of costs. Code Civ. Proc. § 473(a)(2). The court may impose conditions "which are just, i.e., intended to compensate the defendants for any inconvenience belated amendment may cause." *Armenta ex rel. City of Burbank v. Mueller Co.* (2006) 142 Cal.App.4th 636, 642 (conditions must be designed to compensate defendant for inconvenience caused by belated amendment).

Discussion

Plaintiff has essentially complied with the procedural requirements of California Rule of Court 3.1324. He has submitted the proposed third amended complaint. [Allen Decl., Ex. A.] Plaintiff's counsel explains the proposed amendments and attaches to his declaration a red-lined version showing all of the changed from the SAC. [*Id.*, ¶¶ 8-10 and Ex B.] Defendant Lilly objects that Plaintiff's counsel has not really explained the timing and/or has delayed since the discovery giving rise to counsel's re-assessment took place over years. But counsel explains in his declaration that it was not the discovery itself, but counsel's contemplation over time that gave rise to his belief there are further theories of liability, based on essentially the same facts, to be asserted.

Defendant Lilly also claims prejudice because the addition of a claim under Penal Code section 496(c) would increase his exposure by adding treble damages and attorneys' fees to Plaintiff's recovery. But this is not the kind of prejudice that militates against amendment. Had Plaintiff begun with a section 496(c) claim, Defendant Lilly would have

		the same exposure. Defendant Lilly additionally argues that the addition of the claim would expand the issues because the claim requires a showing of criminal intent. <i>Siry Investment, L.P. v. Farkhondehpour</i> (2022) 13 Cal.5th 333, 361–362 (“[W]e observe that not all commercial or consumer disputes alleging that a defendant obtained money or property through fraud, misrepresentation, or breach of a contractual promise will amount to a theft. To prove theft, a plaintiff must establish criminal intent on the part of the defendant beyond “mere proof of nonperformance or actual falsity.”). Further to this, Defendant Lilly contends that “targeted depositions on Lilley’s knowledge and intent, document discovery directed to state of mind, and potentially expert analysis” will be required. Why Defendant Lilly would need to conduct discovery as to his own intent, and what information he would seek to discover, is unclear. Defendant Lilly does not identify the specific discovery he thinks he needs to conduct. He does not explain what information or evidence he would be seeking to discover. Defendant Lilly also points to his motion for summary judgment and the law regarding amendment in the face of an MSJ to assert prejudice because Plaintiff is trying to create a “moving target.” <i>Melican v. Regents of University of California</i> (2007) 151 Cal.App.4th 168, 176 “It would be patently unfair to allow plaintiffs to defeat UCI’s summary judgment motion by allowing them to present a ‘moving target’ unbounded by the pleadings.”). But the case law cited by Defendant Lilly is not applicable here. Those cases involve motions to amend filed <i>after</i> the motion for summary judgment. Here, the motion to amend was filed first. Knowing that it was on file and would be heard first, Defendant Lilly chose to file his motion for summary judgment or adjudication. The results of that choice do not amount to Plaintiff “moving the target” to avoid summary judgment. Finally, Defendant Lilly argues the proposed additional claims cannot be sustained. Again, this is not normally considered in deciding whether leave to amend should be granted. <i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048. Denial of leave to amend has been upheld where the proposed amendment was clearly futile. <i>Foxborough v Van Atta</i> (1994) 26 Cal.App.4th 217, 230 (affirming denial of leave to amend where statute of limitations barred claim); <i>Yee v. Mobilehome Park Rental Review Bd.</i> (1998) 62 Cal.App.4th 1409, 1429 (affirming denial of leave to amend, among other grounds, because claim barred by res judicata or statute of limitations). But on the current record it is not clear that the proposed amendments are futile. Accordingly, the motion to amend is granted. The trial in this matter is continued from September 14, 2026 to November 30, 2026 at 9:00 a.m. in Department C27. Defendant Lilley’s motion for summary judgment/adjudication set for July 20, 2026 is vacated. Should Defendant Lilley wish to file a MSJ/MSA based on the Third Amended Complaint, the Court will reserve the date of October 26, 2026 for the MSJ/MSA to be heard by the Court. However, Defendant Lilley must make it known to this Court at the hearing on this matter that Defendant Lilley intends of filing a timely MSJ/MSA to the Third Amended Complaint. Moving party is ordered to give notice of this ruling.
104	2024-01385241	Motion to Seal The unopposed motion by Defendant American Honda Motor Company, Inc. (“Defendant”)

	Alvarez vs. American Honda Motor Company, Inc.	for an order sealing three exhibits submitted in support of Defendant’s motion for summary adjudication, Exhibit E, Exhibit G-1, and Exhibit G-2, is granted. As an initial matter, the Court notes Defendant’s proof of service for the notice and moving papers did not include the server’s email address. (Code Civ. Proc., § 1013b, subd. (b)(1).) The Court reminds the parties of their obligation to comply with CCP section 1013b when electronically serving documents. Defendant has shown that Exhibits E, G-1, and G-2 should be sealed. (Cal. Rules of Ct., Rules 2.550 (d) and 2.551(b)(1); Memorandum, 3:5-9, 4:1-5:4; Tolmasoff Decl., ¶¶ 2-5 [Exhibits E, G-1, and G-2 contain Defendant’s confidential, proprietary, and trade-secret information, including internal warranty system data and service procedures, which are maintained as confidential by Honda in the ordinary course of business; The documents contain documents that are not publicly disseminated; The competitively sensitive information constitutes an overriding interest that overcomes the presumption of public access; Disclosure would expose internal operation processes and technical procedures not shared outside the company; Defendant will be prejudiced if the order is not granted because confidential proprietary warranty data and internal service operations would become publicly accessible; The proposed sealing is narrowly tailored to three exhibits; Nearly the entire contents of the documents consist of sensitive information; Defendant limited the requested sealing to these three documents which contain confidential corporate information; No less restrictive means exist.].) Accordingly, the unopposed motion is granted. The unredacted exhibits lodged with the Court are ordered filed under seal in this matter. Defendant is ordered to give notice.
105	2025-01526008 Budden vs. Tow Masters, Inc.	1. Motion to Be Relieved as Counsel of Record 2. Case Management Conference The unopposed motion by Andrew J. Mallon and Joshua S. Hopps of Wood, Smith, Henning & Berman LLP (“Counsel”), attorney of record for Defendant Tow Masters, Inc. (“Tow Masters”) for an order permitting Counsel to be relieved as attorney of record for Tow Masters in this action is granted. Counsel has substantially complied with CRC Rule 3.1362. The case management conference is continued to September 14, 2026 at 2:00 p.m. in Department C27. Counsel is ordered to file a revised order including all future dates scheduled in this matter. Upon the signing of the revised order, Counsel shall serve the signed revised order on Tow Masters and all parties who have appeared. The revised order granting relief shall be effective when proof of service of the signed revised order on Tow Masters and all parties is filed with the Court. The Court reminds Tow Masters that an entity must be represented in court by a licensed attorney. It cannot represent itself in court, either in pro per or through an officer or agent who is not an attorney. (<i>Paradise v. Nowlin</i> (1948) 86 Cal.App.2d 897, 898.) Counsel is ordered to give Tow Masters notice of such, with proof of service filed herein. Counsel is ordered to give notice of the ruling.

106	2024-01433115 Royal American Wholesale vs. Eleganza Tiles Inc	1. Motion to Be Relieved as Counsel of Record 2. Case Management Conference The unopposed motion by Jedediah Thurkettle (“Counsel”), attorney of record for Defendant Eleganza Tiles, Inc. (“Defendant”), for an order permitting Counsel to be relieved as attorney of record for Defendant in this action is continued. On April 24, 2026, Counsel filed an amended declaration in support of this motion. Counsel did not file a proof of service showing the amended declaration was served on Defendant. The hearing on this motion is continued to allow Counsel an opportunity to properly serve the amended declaration on Defendant. No later than July 16, 2026, Counsel shall file a proof of service showing the amended declaration was properly served on Defendant. Counsel shall provide notice of the continuance to Defendant and all parties that have appeared in this action. No later than July 16, 2026, Counsel shall file a proof of service showing the notice of continuance was properly served on Defendant and all parties that have appeared in this action. Counsel is also ordered to file a revised order. Hearing on this motion is continued to September 14, 2026 at 2:00 PM in Department C27. The case management conference in this matter is continued to the same date and time. Counsel is ordered to give notice.
107	2025-01537289 Flores vs. California Pizza Kitchen, Inc.	1. Motion to Compel Arbitration 2. Case Management Conference Defendant California Pizza Kitchen’s motion to compel arbitration of Plaintiff’s claims is granted. Defendant’s objections are overruled. Defendant submits a declaration of its People Systems Manager, Tera Thamawatanakul, who describes the hiring/onboarding procedure that Plaintiff went through and authenticates the arbitration agreement. (Thamawatanakul Decl., ¶¶ 3-11, Exs. A. B.) Specifically, she states that when Plaintiff applied for employment she created a Workday online account, through which Defendant sent onboarding documents after Plaintiff was hired. (Thamawatanakul Decl., ¶¶ 7, 8.) The arbitration agreement was included in these onboarding documents. Based on Defendant’s records, Plaintiff electronically acknowledged that she had read the policy on 6/29/22. (Thamawatanakul Decl., ¶¶ 8, 11, Ex. B.) In opposition, Plaintiff argues that she was not aware she was agreeing to arbitrate her claims when she acknowledged receipt of the employment documents. (Flores Decl., ¶ 2.) Plaintiff’s declaration is self-contradictory. She states both that “[a]s part of the onboarding process, I was required to log into Defendant’s Workday portal and review numerous onboarding materials and company documents,” and also that “I clearly did not actually review the documents, and nobody told me I needed to.” (Flores Decl., ¶ 2.) Plaintiff concedes that “Defendant’s own evidence establishes only that employees checked a box stating: ‘I have read and acknowledged the policy/notice in its entirety.’”

(Opposition at 3:2-4; Flores Decl., ¶ 2.)

"It is hornbook law that failing to read an agreement before signing it does not prevent formation of a contract." (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 759.) "That settled rule cannot be evaded by adding, 'and if I had read the contract, I wouldn't've signed it.'" (*Id.*)

Here, Plaintiff acknowledges that she received and was required to review the agreement which was titled "Agreement to Individually Arbitrate any Disputes ("Arbitration Policy")," in underlined bold font, and stated "you and CPK also agree that any Covered Disputes can only be resolved through mandatory individual final and binding arbitration between you and CPK."

Additionally, the agreement stated that "[y]our submission of an application for employment, acceptance of employment, or continuation of employment with CPK is deemed your acceptance of and agreement to be bound by all of the terms and provisions of this Arbitration Policy, subject to your right to elect to not be bound by this Arbitration Policy, as described below..." (Thamawatanakul Decl., Ex. A.)

By electronically signing her acknowledgment of this, the Court finds that Plaintiff agreed to arbitrate her claims. (See Civ. Code, § 1633.2(h) ("Electronic signature" means an electronic sound, symbol, or process attached to or logically associated with an electronic record and executed or adopted by a person with the intent to sign the electronic record.").)

Unconscionability

Unconscionability is one ground on which a court may refuse to enforce a contract, including an arbitration agreement. (Civ. Code §1670.5.) Whether a provision is unconscionable is a question of law. (Civ. Code §1670.5(a); *Flores v. Transamerica* (2001) 93 Cal. App. 4th 846, 851.)

To be unenforceable, a contract must be both procedurally and substantively unconscionable, but the elements need not be present in the same degree. The analysis employs a sliding scale: "...the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal. 4th 83, 114; *Mercuro v. Superior Court* (2002) 96 Cal. App. 4th 167, 174-75.)

Plaintiff argues that the agreement is procedurally unconscionable because she was not provided the opportunity to negotiate any of the terms, and she was required to acknowledge the agreement to get the job. Plaintiff argues that this is a contract of adhesion.

This is not actually true. The Agreement contains the following:

Option To Not Be Bound By Arbitration Policy: Not later than the 30th calendar day after the date you first receive a copy of this Arbitration Policy (the "Election Deadline"), you can elect to not be bound by this Arbitration Policy by giving CPK written notice of such election (an "Election Notice"). CPK does not have a preference as to whether you elect to not be bound by this Arbitration Policy, and you should feel free to do so without fear of retaliation or reprisals by CPK, which

		is strictly prohibited The Court finds that Plaintiff has not shown that the agreement is procedurally unconscionable. With regard to substantive unconscionability, Plaintiff contends the agreement provides that the parties will share equally in all fees and costs. This also is not 100% accurate as the agreement expressly conditions this on applicable law, noting that if required, CPK will pay all costs unique to arbitration. Additionally, Plaintiff argues that the provision is confusing because it attempts to impose the Federal Rules of Civil Procedure (“FRCP”) and Federal Rules of Evidence (“FRE”) within a private JAMS employment arbitration proceeding, is one-sided, and overbroad. These arguments are unavailing and not supported by any applicable legal authority. Notwithstanding this, Plaintiff must show both procedural and substantive unconscionability in arguing that the agreement is unenforceable. (See <i>Armendariz, supra</i>, (2000) 24 Cal. 4th at 114.) Given that Plaintiff could have opted out of the agreement without affecting her employment, procedural unconscionability has not been shown. The motion is granted. This matter is hereby stayed pursuant to Code Civ. Proc., § 1281.4. The case management conference is vacated. The Court sets a status conference on July 19, 2027 at 10:00 a.m. in Dept. C27 re: the status of arbitration. Defendant is ordered to give notice.
108	2024-01399043 Madrid vs. Ford Motor Company	1. Motion for Attorney Fees 2. Order to Show Cause re: Dismissal on Settled Case The Court grants Plaintiff Abraham Madrid’s Motion for attorney’s fees against Defendant Ford Motor Company in the amount of \$32,812.50. The Court denies the request for any “Lodestar” enhancement. The Court will also enter a judgment for costs for \$2,359.90, the amount requested. Plaintiff is ordered to prepare a proposed judgment, including the costs in the amount requested, as no timely motion to strike or tax costs was filed. The Court intends on dismissing this matter with prejudice in light of the fact that this matter has settled. If Plaintiff opposes the Court’s tentative ruling in this regard, Plaintiff’s counsel should attend the hearing and be prepared to address the OSC. Plaintiff is ordered to serve notice of this ruling.
109	2025-01526045 Freeman vs. Massage Envy Franchising, LLC	1. Demurrer to Complaint 2. Motion to Strike Complaint 3. Case Management Conference A. Demurrer

Defendants Tustin Massage Envy, Brittany Sieger, and Greg Sieger’s Demurrer to Plaintiff Brittany Freeman’s Complaint is sustained in large part as set forth below. Plaintiff is given 20 days leave to amend.

1. First cause of action for negligence

Moving Defendants argue, and the Court agrees, that it is not clear if Plaintiff is attempting to allege medical malpractice or negligence in a non-medical context.

The Complaint alleges that the Siegers own Massage Envy Tustin. (Compl., ¶7.) On March 3, 2025, Plaintiff went to Massage Envy Tustin for a massage to address pain in her back and neck. (Compl., ¶13.) Sheila Horowitz was the assigned massage therapist; Ms. Horowitz is an employee of Massage Envy Tustin. (Compl., ¶¶8,13.)

In sum, Plaintiff alleges that Horowitz injured her while performing an intraoral massage on Plaintiff, with the goal of addressing the tension and pain Plaintiff felt in her neck. (Compl., ¶¶15-19.) Plaintiff alleges that she raised her hand to indicate extreme discomfort and pain; Ms. Horowitz momentarily paused the massage but failed to adjust her technique or pressure to reduce the discomfort and pain, and “proceeded with great force to massage PLAINTIFF’s jaw hinge and wisdom teeth area”. (Compl., ¶18.)

Plaintiff’s opposition to the demurrer appears to argue that there are distinct allegations of medical malpractice and ordinary negligence. Plaintiff must separate her claims into distinct causes of action and meet all pleading standards.

Moreover, as to the Siegers, there is no negligence alleged. Plaintiff admits that Ms. Horowitz is an employee of Defendant Massage Envy Tustin, not the Siegers. (See Compl., ¶¶7-8.)

The Court also notes that there is no authority for the sub-claim of “negligent infliction of emotional distress”. (See *Thing v. La Chusa* (1989) 48 Cal.3d 644, 667.) Negligent infliction of emotional distress is not an independent tort in California, but is regarded simply as the tort of negligence. (see *Klein v. Children’s Hospital Medical Center* (1996) 46 Cal.App.4th 889, 894.)

The Court therefore sustains the demurrer.

2. Second cause of action for battery

Although Moving Parties address this claim, it is not brought against them.

3. Third cause of action for IIED

Moving Defendants argue that there are no allegations that they intended to harm Plaintiff.

“A cause of action for intentional infliction of emotional distress exists when there is ‘(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct.’ A defendant’s conduct is ‘outrageous’ when it is so ‘extreme as to exceed all bounds of that usually tolerated in a

civilized community.’ And the defendant's conduct must be ‘intended to inflict injury or engaged in with the realization that injury will result.’ ” (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050–1051; CACI 1600.)

An employee's willful, malicious, and even criminal torts may fall within the scope of his or her employment, even though the employer did not authorize the employee to commit crimes or intentional torts. (*Crouch v. Trinity Christian Center of Santa Ana, Inc.* (2019) 39 Cal.App.5th 995, 1015.)

The allegations against Moving Defendants are that Ms. Horowitz “performed an intraoral massage that significantly deviated from accepted massage practices and professional standards”. (Compl., ¶47.) This does not state a claim for IIED.

However, Plaintiff also alleges that “Defendant HOROWITZ continued to perform the massage despite PLAINTIFF’s obvious and extreme discomfort, demonstrating a reckless disregard for PLAINTIFF’s physical and emotional well-being.” (Compl., ¶48.) “The above-described conduct by Defendant HOROWITZ took place while performing duties within the scope of her employment relationship with Defendants MASSAGE ENVY TUSTIN and/or SIEGERS; therefore, said Defendants are responsible for all damages to PLAINTIFF under the doctrine of Respondeat Superior.” (Compl., ¶53.) The Complaint alleges that he massage was carried out with a reckless disregard for her pain and safety. (Compl., ¶51.)

Malicious or evil purpose is not essential to liability for IIED. (*Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1045.)

Thus, the Court finds sufficient facts as to the employer Massage Envy Tustin.

However, there is no conduct alleged by the Siegers that could state a claim.

Thus, the Demurrer is sustained as to the *Siegers only*.

4. Fourth cause of action for “failure to warn” and fifth cause of action for lack of informed consent

In the medical context, lack of informed consent is a subcategory of professional negligence doctrine. A medical professional’s failure to obtain informed consent can give rise to liability in medical malpractice. (*Cobbs v. Grant* (1972) 8 Cal. 3d 229.)

Here, the Complaint alleges that “intraoral massages carry risks of serious injury, including the possibility of a dislodged condyle, which would not be obvious to an ordinary client of massage services”; Plaintiff was not informed. (Compl., ¶¶56-59, in the fourth cause of action.)

Plaintiff alleges in relevant part that “Neither Defendant HOROWITZ nor Defendant MASSAGE ENVY TUSTIN and/or Defendants SIEGER informed PLAINTIFF about the risks associated with intraoral massage, including the possibility of permanent and life-altering injuries, and thus PLAINTIFF’s consent was not a fully informed one. A reasonable person in PLAINTIFF’s position would not have agreed to the procedure if they had been adequately informed of these risks. Had PLAINTIFF been properly informed of all material risks associated with intraoral massage, she would not have consented to the procedure.” (Compl., ¶66, in the fifth cause of action.)

These two claims appear to overlap.

Moreover, there is again no facts alleged to state a claim against the Siegers, who Plaintiff admits were not Ms. Horowitz's employer.

The Court therefore sustains the demurrer.

5. Sixth cause of action for negligent hiring, training, supervision

Moving Defendant argues that the allegations here are conclusory, specifically that Defendants should have known Ms. Horowitz was incompetent.

"California case law recognizes the theory that an employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee." (Doe v. Capital Cities (1996) 50 Cal.App.4th 1038, 1054; CACI 426.) "Negligence liability will be imposed on an employer if it 'knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes.' " (Phillips v. TLC Plumbing, Inc. (2009) 172 Cal.App.4th 1133, 1139.)

Here, Defendants take issue with the allegations that Plaintiff was incompetent. But considering all properly alleged facts, the Court finds the allegation sufficient.

However, the Sieger, again, are not Ms. Horowitz's employer.

Thus, the Demurrer is sustained as to the *Siegers only*.

6. Seventh cause of action for "negligent operation of activity requirement franchise"

It is not clear to the Court what claim Plaintiff is trying to assert; this appears to be another negligence claim.

The Court therefore sustains the demurrer.

7. Eighth cause of action for "vicarious liability"

Vicarious liability is not a separate cause of action but a theory of recovery against the employer. (See e.g. *CRST, Inc. v. Superior Court* (2017) 11 Cal.App.5th 1255, 1264.)

The Court therefore sustains the demurrer.

B. Motion to Strike

Moving Defendants seek to strike Plaintiff's request for attorney's fees and punitive damages.

Code of Civil Procedure § 1021 codifies the "American rule" that each party must bear the expense of its own attorney's fees. 14 Cal.5th at 417. (*Java Oil Ltd. v Sullivan* (2008) 168 Cal.App.4th 1178, 1189–1192 (California courts may enforce foreign money judgments that automatically award attorney's fees to successful litigant, e.g., under "English rule" that generally requires loser to pay winner's attorney's fees; these awards are not contrary to California public policy).

Here, Plaintiff alleges no agreement with Defendants that provides for attorney's fees nor does Plaintiff cite to a statute that could provide for attorney's fees to the prevailing party.

		Thus, the request for attorney’s fees is stricken. The issue of punitive damages is moot given the above rulings. The case management conference is continued to December 7, 2026 at 10:00 a.m. in Department C27. Moving Defendants are ordered to serve notice.
110	2026-01540310 Wach vs. East	1. Demurrer to Complaint 2. Demurrer to Complaint 3. Case Management Conference The demurrer of Defendants Sebastian East DDS and Sebastian East Dental Corp. to the third cause of action contained within Plaintiff Lawrence Wach’s complaint is sustained with 15 days leave to amend.. [ROA # 25.] The demurrer of Defendant Providence Health and Services to the second and third causes of action contained within Plaintiff’s complaint is sustained with 15 days leave to amend. [ROA # 32.] Plaintiff’s Complaint Plaintiff alleges that he went to Defendant Sebastian East, DDS and Sebastian East Dental Corporation (together, “Dr. East”), for surgery to repair Plaintiff’s lower jaw. This took place at the premises of Defendant Provident Health and Services (“Providence”), the actual or ostensible employer of Dr. East. [Complaint (ROA #2), ¶¶ 2-4, 11-12.] Plaintiff alleges that the procedure was to involve only surgery inside Plaintiff’s mouth in order to repair his broken jaw and he did not consent to any contact with any part of his face. [Complaint, ¶ 14.] During the surgery, Dr. East used an electrocautery tool that he intentionally set or rest of Plaintiff’s face while Plaintiff was under anesthesia. The tool was still hot and severely burned Plaintiff’s face. [Complaint, ¶¶ 15-19.] Plaintiff asserts through causes of action against all Defendants: (1) professional negligence; (2) battery; and (3) dependent adult abuse and neglect, Welf. & Inst. Code §15600. Dr. East demurs to the third cause of action. Providence demurs to the second and third causes of action. Legal Standard A demurrer can be used only to challenge defects that appear within the “four corners” of the pleading – which includes the pleading, any exhibits attached, and matters of which the court is permitted to take judicial notice. <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318; <i>Donabedian v. Mercury Ins. Co.</i> (2004) 116 Cal.App.4th 968, 994. Limited to the “four corners” as such, a pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. <i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413.

On demurrer, a complaint must be liberally construed. Code Civ. Proc. § 452; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 601. All material facts properly pleaded, and reasonable inferences, must be accepted as true. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.

A demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading, but is directed at the uncertainty existing in the allegations actually made. *People v. Lim* (1941) 18 Cal. 2d 872, 883. "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." *Khoury v. Maly's of California, Inc.* (1993) 14 Cal. App. 4th 612, 616. Errors and confusion created by "the inept pleader" are to be forgiven if the pleading contains sufficient facts entitling plaintiff to relief. *Saunders v. Cariss* (1990) 224 Cal. App. 3d 905, 908. A party attacking a pleading on "uncertainty" grounds must specify how and why the pleading is uncertain, and where that uncertainty can be found in the challenged pleading. *Fenton v. Groveland Community Services Dept.* (1982) 135 Cal.App.3d 797, 809 (disapproved on other grounds in *Katzberg v. Regents of the University of California* (2002) 29 Cal.4th 300).

Discussion

Second Cause of Action for Medical Battery

The elements of a "medical battery" claim in the absence of consent are: [1] defendant performed a medical procedure without plaintiff's consent, *or* plaintiff consented to one medical procedure, but defendant performed a substantially different medical procedure; [2] plaintiff was harmed; [3] defendant's conduct was a substantial factor in causing plaintiff's harm. CACI 530A.

"Our high court has made it clear that battery and lack of informed consent are separate causes of action. A claim based on lack of informed consent—which sounds in negligence—arises when the doctor performs a procedure without first adequately disclosing the risks and alternatives. In contrast, a battery is an intentional tort that occurs when a doctor performs a procedure without obtaining any consent." *Saxena v. Goffney* (2008) 159 Cal.App.4th 316, 324.

"The term 'professional negligence' encompasses actions in which 'the injury for which damages are sought is directly related to the professional services provided by the health care provider' or directly related to 'a matter that is an ordinary and usual part of medical professional services.'" [C]ourts have broadly construed "professional negligence" to mean negligence occurring during the rendering of services for which the health care provider is licensed.'" (*Arroyo v. Plosay* (2014) 225 Cal.App.4th 279, 297 (internal citations omitted).) In *So v. Shin* (2013) 212 Cal. App.4th 652, the court noted that courts have "broadly interpreted" the term "in the rendering of professional services" used in the MICRA statutes. (*Id.* at 663.)

A straightforward reading of Plaintiff's allegations is that, during a procedure he consented to, Dr. East used a medical device improperly. That is medical negligence, not battery.

Accordingly, Providence's demurrer to the second cause of action for battery is sustained.

Third Cause of Action for Elder Abuse

A summary of the standards for The Elder Abuse Act was provided in *Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal. App. 4th 396, which notes that the Act makes certain enhanced remedies available to a plaintiff who proves abuse of a "person

residing in this state, 65 years of age or older.” *Id.* at 404; W & I Code § 15610.27. The Act defines abuse as physical abuse, *neglect*, financial abuse, abandonment, isolation, abduction, or other treatment with resulting physical harm or pain or mental suffering or deprivation by a care custodian of goods or services necessary to avoid physical harm or mental suffering. *Id.*, W & I Code § 15610.07(a), (b). It defines *neglect* as negligent failure of any person having care or custody of an elder to exercise the degree of care that a reasonable person in a like position would exercise, including failure to assist in personal hygiene, providing food, clothing, shelter or medical care for physical and mental health needs, to protect from health and safety hazards, or to prevent malnutrition or dehydration. *Id.*, § 15610.57(a)(1), (b).

In short, neglect under the Elder Abuse Act refers “to the failure of those responsible for attending to the basic needs and comforts of elderly or dependent adults, regardless of their professional standing, to carry out their custodial obligations.” *Carter* at 404, citing *Delaney v. Baker* (1999) 20 Cal. 4th 23, 34. Thus, when care of an elder is at issue, the statutory definition of neglect speaks not of the undertaking of services, but of the failure to provide care. *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal. 4th 771, 783.

Neglect “requires a caretaking or custodial relationship that arises where an elder or dependent adult depends on another for the provision of some or all of his or her fundamental needs.” *Winn v. Pioneer Med. Group, Inc.* (2016) 63 Cal.4th 148, 160.

To find conduct constituting neglect within the meaning of the Elder Abuse Act and trigger its enhanced remedies, the plaintiff must allege (and ultimately prove by clear and convincing evidence) facts establishing that the defendant had responsibility for meeting the basic needs of the elder or dependent adult, such as nutrition, hydration, hygiene or medical care, knew of conditions that made that person unable to provide for his or her own basic needs, and denied or withheld goods or services necessary to meet those needs either with knowledge that injury was substantially certain to befall them (if the plaintiff alleges oppression, fraud or malice) or with conscious disregard of the high probability of such injury (if the plaintiff alleges recklessness). *Carter, supra*, at 406-07. The plaintiff must also allege (and ultimately prove by clear and convincing evidence) that the neglect caused the elder or dependent adult to suffer physical harm, pain or mental suffering. *Id.* Finally, the facts constituting the neglect and establishing the causal link between the neglect and the injury must be pled with particularity in accordance with the pleading rules governing statutory claims. *Carter, supra*, at 407.

In short, health care providers who engage in “simple professional negligence” are not subject to the heightened remedies available under Welf. & Inst. C. § 15657 (general damages, attorney fees and costs). *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 781, 784; *Worsham v. O’Connor Hosp.* (2014) 226 Cal. App. 4th 331, 337.

Here, Plaintiff has not alleged a custodial relationship between himself and Dr. East or Providence. He makes the conclusory allegation that he and Defendants “entered into and maintained a custodial relationship” but does not allege facts showing they had responsibility for meeting his basic needs. Rather, he alleges they were responsible for “care, monitoring, supervision, and protection from known or foreseeable health and safety hazards, especially during the period in which he was rendered unconscious due to anesthesia and sedation.” [Complaint, ¶ 41.] This is medical care by a medical provider, not elder abuse under the statute.

Accordingly, Defendants’ demurrers to the third cause of action for elder abuse are sustained. The case management conference is continued to December 14, 2026 at 10:00

		a.m. in Department C27. Defendant Providence is ordered to give notice of the rulings.
111	2024-01406956 Lancona vs. Bell	1. Demurrer to Amended Complaint 2. Motion to Strike Portions of Complaint 3. Case Management Conference 4. Status Conference (1) DEMURRER Defendant American General Life Insurance Company's ("AGL") demurrer to Plaintiffs Tanner Lancona's and Audrina Lancona's Second Amended Complaint ("2AC") is overruled as to the 1st-4th, 6th, 7th and 13th causes of action and sustained without leave to amend as to the 9th-12th causes of action. A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (<i>Lambert v. Carneghi</i> (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the "four corners" of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (<i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413.) On demurrer, a complaint must be liberally construed. (CCP § 452; <i>Stevens v. Superior Court</i> (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (<i>Aubry v. Tri-City Hospital Dist.</i> (1992) 2 Cal.4th 962, 966-67.) The causes of action are addressed below in the same order as the parties did in their briefing. <u>13th cause of action for breach of contractual duty to pay a covered claim</u> "A cause of action for breach of contract requires proof of the following elements: (1) existence of the contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) damages to plaintiff as a result of the breach." (<i>Miles v. Deutsche Bank National Trust Company</i> (2015) 236 Cal.App.4th 394, 402.) The Court already overruled Defendant AGL's demurrer to Plaintiffs' breach of contract claim as it was alleged in the original Complaint on 9/15/25. (ROA 103.) Defendant makes the same arguments again, contending that AGL did not breach the insurance contract because Tanner was not the designated policy beneficiary. Again, Defendant ignores the allegations in the Complaint of vicarious liability. Plaintiffs allege that AGL is vicariously liable for the actions of Cantu, as he was acting within the scope of his employment or agency. (See e.g., 2AC, ¶¶ 4, 50, 82, 95, 100.) For the same reasons as before, the demurrer to the breach of contract claim is overruled.

1st cause of action for declaratory relief

Code of Civil Procedure section 1060 authorizes '[a]ny person interested under a written instrument, excluding a will or a trust, or under a contract, who desires a declaration of his or her rights or duties with respect to another ... in cases of actual controversy relating to the legal rights and duties of the respective parties, [to] bring an original action ... for a declaration of his or her rights and duties....' (Code Civ. Proc., § 1060, italics added.) "'The fundamental basis of declaratory relief is the existence of an actual, present controversy over a proper subject.'" [Citation.]' [Citation.] In order for a party to pursue an action for declaratory relief, the "'actual, present controversy must be pleaded specifically. '" [Citation.] Thus, a claim must provide specific facts, as opposed to conclusions of law, which show a 'controversy of concrete actuality.'" (*Jenkins v. JPMorgan Chase Bank, N.A.* (2013) 216 Cal.App.4th 497, 513-514, disapproved on other grounds by *Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919.)

The Court also overruled Defendant's demurrer previously because Defendant argued that it was duplicative/derivative of the breach of contract claim and the demurrer to the breach of contract claim was overruled. (ROA 103.)

The demurrer again is overruled because Plaintiffs allege a breach of contract claim against AGL based on its vicarious liability for Cantu's actions. Thus, Plaintiffs also state a declaratory relief claim based on their contractual rights.

12th cause of action for breach of fiduciary duty

To establish a breach of fiduciary duty, the plaintiff must allege: "(1) existence of a fiduciary duty; (2) breach of the fiduciary duty; and (3) damage proximately caused by the breach." (*Stanley v. Richmond* (1995) 35 Cal.App.4th 1070, 1086.)

It is well established that as a matter of law, an insurer is not a fiduciary of an insured. (*Morris v. Paul Revere Life Ins. Co.* (2003) 109 Cal.App.4th 966, 973 ("An insurer is not a fiduciary, and owes no obligation to consider the interests of its insured above its own"); *Vu v. Prudential Property & Casualty Ins. Co.* (2001) 26 Cal.4th 1142, 1151 ("The insurer-insured relationship, however, is not a true 'fiduciary relationship'...This characteristic has led the courts to impose "special and heightened" duties, but ' [w]hile these 'special' duties are akin to, and often resemble, duties which are also owed by fiduciaries, the fiduciary-like duties arise because of the unique nature of the insurance contract, not because the insurer is a fiduciary.'"). Similarly, if an insurer does not owe a fiduciary duty to its own insured, it would not owe a fiduciary duty to a prospective beneficiary.

The Court previously sustained AGL's demurrer on this ground with leave to amend. (ROA 103.)

The allegations have not substantively changed. Plaintiffs again allege that Cantu owed a fiduciary duty to Sean Lancona and his intended third-party beneficiary, Tanner Lancona. (2AC, ¶ 174.) Plaintiffs cite to no binding California cases holding that a fiduciary relationship would exist under these circumstances.

Moreover, even the federal case Plaintiffs cite to - *In re Conseco Ins. Co. Annuity Marketing & Sales Practices Litigation* (N.D. Cal., Feb. 12, 2007, No. C-05-04726RMW) 2007 WL 486367, at p.7 - held that "as a matter of California law, no true fiduciary duty arises from the insurer-insured relationship and an insured therefore cannot maintain a claim for breach of fiduciary duty based solely on the insurer-insured relationship."

Therefore, the Court sustains AGL's demurrer to this cause of action.

2nd cause of action for fraud by concealment, 3rd cause of action for fraud by intentional misrepresentation and 4th causes of action for negligent misrepresentation

The elements of fraud are "(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.)

Generally, causes of action for fraud are subject to stricter pleading standards; fraud must be plead with specificity. (*Committee on Children's Television v. General Foods Corp.* (1983) 35 Cal. 3d 197, 216-227.) Facts must be plead to "show how, when, where, to whom, and by what means the representations were tendered." (*Hamilton v. Greenwich Investors XXVI, LLC* (2011) 195 Cal.App.4th 1602, 1614.)

Plaintiffs have added additional, more specific allegations to the Second Amended Complaint that were not present before.

For example, Plaintiffs reproduced a number of texts from Cantu, and also described conversations with Bell, as well as noting the claim forms Bell submitted contained false information. (2AC, ¶¶ 84-89, 98-103.) Plaintiffs allege these communications by Cantu were made in his capacity as AGL's agent. (2AC, ¶¶ 95, 98.)

In addition, Plaintiffs now allege justifiable reliance. (See e.g., 2AC, ¶ 107.)

Based on this, the Court overrules Defendant's demurrer to the 2nd- 4th causes of action.

9th cause of action for conversion

"[A] mere contractual right of payment, without more" is insufficient to state a claim for conversion. (*Farmers Ins. Exch. v. Zerin* (1997) 53 Cal.App.4th 445, 452 (sustaining demurrer as to conversion claim after refusing to find that an insurer had a property interest in an insurer's third-party recoveries by virtue of the policy language).) Thus, "the simple failure to pay money owed does not constitute conversion." (*Voris v. Lampert* (2019) 7 Cal.5th 1141, 1151 (holding that a conversion claim was not appropriate for unpaid contractual wages because the failure to pay money owed should be brought under contract law).)

Plaintiffs allege that "Defendants substantially interfered with Tanner Lancona's property by knowingly and intentionally taking possession of the stolen instrument, preventing Tanner Lancona from having access to the sums certain, and refusing to return the sums certain after Tanner Lancona demanded their return." (SAC, ¶ 141.) This does not really describe actions of AGL, but of Bell, if anyone.

Because Plaintiffs' claims as to AGL boil down to a contractual right of payment, conversion is not properly pled and the demurrer is sustained.

10th and 11th causes of action for Civil Theft and Aiding and Abetting

California Penal Code Section 496 makes it a violation to receive or conceal stolen property

or property obtained through theft, and allows victims to bring a civil action for three times the amount of actual damages and reasonable attorney fees.

Plaintiffs allege that Cantu made false representations with an intent to defraud Plaintiffs, facilitating the diversion of funds to Bell. (2AC, ¶¶ 157-160.) While this supports a claim for fraud, this does not constitute theft on the part of Cantu/AGL.

Accordingly, Defendant's demurrer to these causes of action is sustained.

7th cause of action for intentional infliction of emotional distress

The elements of IIED are (1) Defendant's conduct was outrageous, (2) Defendant intended to cause Plaintiff emotional distress or acted with reckless disregard of the probability that Plaintiff would suffer emotional distress, (3) Plaintiff suffered severe emotional distress, and (4) Defendant's conduct was a substantial factor in causing Plaintiff's severe emotional distress. (CACI 1620.) "A defendant's conduct is outrageous when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community...[and] intended to inflict injury or engaged in with the realization that injury will result." (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050–51.)

Plaintiffs allege in the SAC that "Defendants Sherri Bell, Joseph Matthew Cantu, and Does 1-50 engaged in extreme and outrageous conduct. This conduct includes, but is not limited to, interfering with Tanner's right to inheritance and stealing from him in connection with the passing of his father, with whom he was very close. This exceeded all bounds of that usually tolerated in a civilized community." (2AC, ¶ 129.)

Defendant ignores Plaintiffs' allegations of vicarious liability, arguing just that AGL did nothing wrong as it paid the death benefit to the policy's designated beneficiary.

Because Plaintiffs allege that AGL is vicariously liable for Cantu's actions, the Court overrules the demurrer as Plaintiffs allege facts to support outrageous conduct on the part of Cantu. (See *Lawson v. Superior Court* (2010) 180 Cal.App.4th 1372, 1389 ("As long as the Complaint adequately pleads the elements of negligence, negligent infliction of emotional distress and intentional infliction of emotional distress against Koen and Sanders, it also adequately pleads the vicarious liability of the State for those causes of action.").)

6th cause of action for intentional interference with expected inheritance

In *Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1057, the court explains that to state a claim for IIEI, a plaintiff must allege, (1) he had an expectancy of an inheritance, (2) causation, (3) intent, (4) the interference was conducted by independently tortious means, and (5) that plaintiff was damaged by the defendant's interference.

In paragraphs 122-125, Plaintiffs allege facts to support this claim. Therefore, the demurrer is overruled to the 6th cause of action.

(2) MOTION TO STRIKE

Defendant American General Life Insurance Company's ("AGL") motion to strike portions of Plaintiffs Tanner Lancona's and Audrina Lancona's Second Amended Complaint ("2AC") is granted without leave to amend as to Plaintiffs' claims for punitive damages and attorney fees.

		Defendant's request that the Court strike the entire Second Amended Complaint and the 22 exhibits attached to it is denied, as this was not properly noticed. <u>Punitive damages</u> Civil Code § 3294 provides that punitive damages may be awarded in an action for breach of an obligation not arising from contract, if the plaintiff proves by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. "Malice" means conduct that is intended to cause injury or despicable conduct that is carried on with a willful and conscious disregard of the right and safety of others. (Civ. Code § 3294(c)(1).) Civ. Code, § 3294(b) provides: An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation. Plaintiffs allege no facts to support liability on the part of AGL pursuant to § 3294(b), such as ratification, knowledge, etc. Therefore, the motion is granted without leave to amend. While Plaintiffs request leave to amend, they do not articulate how they could amend to state sufficient facts. <u>Attorney fees</u> Attorney's fees are recoverable by a party only if specifically provided for by a statute or law, or if authorized by an express agreement between the parties. (Code Civ. Proc., §§ 1021, 1033.5, subd. (a)(10)(A)-(C); Civ. Code, § 1717; see also <i>Nasser v. Superior Court</i> (1984) 156 Cal.App.3d 52, 56 ("Absent an agreement or statute, a party is generally precluded from recovery of attorney fees."); <i>Reynolds Metals Co. v. Alperson</i> (1979) 25 Cal.3d 124, 127.) There is no basis (contract, statute, law) for attorney fees against AGL, in light of Plaintiffs' failure to allege facts to support their civil theft claims against AGL. Accordingly, the request for attorney fees as to AGL is stricken. The status conference re: payment of sanctions by attorney Anthony J. Francisco is vacated. The case management conference is continued to December 14, 2026 at 10:00 a.m. in Department C27. Defendant AGL is ordered to give notice of all rulings set forth above.
112	2025-01531902	1. Demurrer to Complaint 2. Motion to Strike Portions of Complaint

Garza vs. Eagle
Propco 6, LLC

3. Case Management Conference

4. Order to Show Cause re: Sanctions for Failure to File Case Management Statement

The general and special demurrer by Defendant Eagle Propco 6 LLC ("Defendant") to the third and fifth causes of action alleged in the Complaint filed by Plaintiffs Raul Garza, Alessandra Garza, and Alissa Garza (collectively, "Plaintiffs") is overruled in part and sustained in part with 15 days leave to amend. Defendant's motion to strike punitive damages allegations, prayer for punitive damages, and prayer for attorneys' fees is moot in part, denied in part, and granted in part with 15 days leave to amend.

As an initial matter, the Court notes the parties did not comply with CCP section 1013b. The Court reminds the parties of their obligation to comply with section 1013b when electronically serving documents.

DEMURRER

Third cause of action for intentional infliction of emotional distress

The elements to plead a cause of action for intentional infliction of emotional distress are: (1) outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Vasquez v. Franklin Management Real Estate Fund, Inc.* (2013) 222 Cal.App.4th 819, 832.)

"Behavior may be considered outrageous if a defendant (1) abuses a relation or position that gives him power to damage the plaintiff's interests; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress. . . ." (*Molko v. Holy Spirit Ass'n* (1988) 46 Cal. 3d 1092, 1122 (superseded by statute on other grounds).)

"The law intervenes only where the distress inflicted is so severe that no reasonable man could be expected to endure it. The intensity and duration of the distress are factors to be considered in determining the severity." (*Fletcher v. Western Life Insurance Co.* (1970) 10 Cal.App.3d 376, 397.) "Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." (*Davidson v. City of Westminster* (1982) 32 Cal.3d 197, 209.)

"Discomfort, worry, anxiety, upset stomach, concern, and agitation" as the result of defendant's conduct do not constitute emotional distress of "such substantial quality or enduring quality that no reasonable [person] in civilized society should be expected to endure it." (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 105.) "[O]rdinary defendants are not liable for mere insult, indignity, annoyance, or even threats, where the case is lacking in other circumstances of aggravation. The reasons are not far to seek. Our manners, and with them our law, have not yet progressed to the point where we are able to afford a remedy in the form of tort damages for all intended mental disturbance. Liabilities of course cannot be extended to every trivial indignity.... Accordingly, it is generally held that there can be no recovery for mere profanity, obscenity, or abuse, without circumstances of aggravation, or for insults, indignities or threats which are considered to amount to nothing more than mere annoyances. The plaintiff cannot recover merely because of hurt feelings." (*Yurick v. Superior Court* (1989) 209 Cal.App.3d 1116, 1128.)

In addition, it is "not enough that the conduct be intentional and outrageous. It must be

conduct directed at the plaintiff, or occur in the presence of a plaintiff of whom the defendant is aware.” (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.)

Plaintiffs alleged sufficient facts to state this cause of action. (Complaint, ¶¶ 2-4, 6, 7, 14-16, 19, 20, 31-35, 37, 38, 40-45, 51-53, 78, 79, and 81-89.) Demurrer is overruled.

Fifth cause of action for fraudulent concealment

“The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.)

The elements for a cause of action for deceit by concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage. (*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248.)

“A duty to speak may arise in four ways: it may be directly imposed by statute or other prescriptive law; it may be voluntarily assumed by contractual undertaking; it may arise as an incident of a relationship between the defendant and the plaintiff; and it may arise as a result of other conduct by the defendant that makes it wrongful for him to remain silent.” (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 867.)

Every element of fraud must be pleaded with specificity. The particularity requirement for fraud requires the pleading of facts showing how, when, where, to whom, and by what means the representations were made. (*Stansfield v. Starkey* (1990) 220 Cal. App. 3d 59, 73.) This is to provide the defendant with notice and to give the court enough information to assess whether there is a foundation for the charge of fraud. (*Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal. 3d 197, 216.) The requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157.) Nonetheless, “[l]ess specificity is required when it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy.” (*Committee on Children’s Television*, 35 Cal. 3d at 216 [citation and internal quote marks omitted].)

Plaintiffs did not allege sufficient facts with the required specificity to state this cause of action. Demurrer is sustained with 15 days leave to amend.

Uncertainty

A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) Errors and confusion created by “the inept pleader” are to be forgiven if the pleading contains sufficient facts entitling plaintiff to relief. (*Saunders v. Cariss* (1990) 224 Cal.App.3d 905, 908.) A demurrer for uncertainty should be overruled if the facts are presumptively within defendant’s knowledge. (*Khoury*, 14 Cal.App.4th at 616.) A party attacking a pleading on

“uncertainty” grounds must specify how and why the pleading is uncertain, and where that uncertainty can be found in the challenged pleading. (*Fenton v. Groveland Community Services Dept.* (1982) 135 Cal.App.3d 797, 809, disapproved on other grounds in *Katzberg v. Regents of the University of California* (2002) 29 Cal.4th 300.) Here, the third and fifth causes of action are not so unintelligible that Defendant cannot reasonably respond. Any ambiguities can be clarified through discovery. (*Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135; *Khoury*, 14 Cal.App.4th at 616.) Accordingly, the demurrer on this ground is overruled.

MOTION TO STRIKE

Defendant seeks an order striking punitive damages allegations in paragraphs 47, 48, 66, 68, 76, 77, 79, 82, 96, 104, and 111, Plaintiff’s prayer for punitive damages in paragraph 115, and Plaintiffs’ prayer for attorneys’ fees from Plaintiffs’ Complaint.

General legal authority

Pursuant to Code of Civil Procedure section 436, the Court may:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

“The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 437, subd. (a).)

“[J]udges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.)

Attorneys’ fees

Attorneys’ fees are generally not recoverable unless specifically provided for by statute or subject to an express agreement between the parties. (*D’Amico v. Board of Medical Examiners* (1974) 11 Cal.3d 1, 25; Code Civ. Proc., §§ 1021 and 1717.) Plaintiffs did not show attorneys’ fees are recoverable in this action. Defendant’s motion is granted with 15 days leave to amend.

Punitive damages

Plaintiffs may recover exemplary damages in an action for the breach of an obligation not arising from contract if Plaintiffs proves by clear and convincing evidence that Defendant is “guilty of oppression, fraud, or malice.” (Civ. Code § 3294, subd. (a).) Malice is defined as “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code § 3294, subd. (c)(1).) Oppression is defined as “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code § 3294, subd. (c)(2).) Fraud is defined as “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code § 3294, subd. (c)(3).)

Punitive damages cannot be pled in conclusory terms, instead the facts supporting a claim for punitive damages must be set out clearly, concisely, and with particularity. (*Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1041-1042.) However, “it has long been recognized that ‘(t)he distinction between conclusions of law and ultimate facts is not at all clear and involves at most a matter of degree.’” (*Perkins v. Superior Court* (1981) 117

Cal.App.3d 1, 6.) “What is important is that the complaint as a whole contain sufficient facts to apprise the defendant of the basis upon which the plaintiff is seeking relief.” (*Id.*) In ruling on a motion to strike, the Court should “read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255; *See Perkins*, 117 Cal.App.3d at 6 [“stricken language must be read not in isolation, but in the context of the facts alleged in the rest of petitioner’s complaint.”].)

“When the defendant is a corporation, ‘[a]n award of punitive damages against a corporation...must rest on the malice of the corporation’s employees.’” (*Wilson v. Southern California Edison Co.* (2015) 234 Cal.App.4th 123, 164 [citing *Cruz v. HomeBase* (2000) 83 Cal.App.4th 160, 167].)

Paragraphs 104 and 111

In light of the ruling above, Defendant’s motion to strike paragraphs 104 and 111 is moot.

Paragraphs 47 and 48

Defendant moves to strike the phrase, “caused by the intentional, malicious, willful and reckless conduct” in paragraphs 47 and 48. Defendant did not show this language is subject to strike. Motion is denied.

Paragraphs 66, 68, 76, and 96

Defendant moves to strike the phrase, “knowingly, intentionally, and willfully” in paragraphs 66, 68, 76 and 96. Defendant did not show this language is subject to strike. Motion is denied.

Paragraph 77

Defendant did not show this entire paragraph is subject to strike. Motion is denied.

Paragraph 79

Defendant did not show this entire paragraph is subject to strike. Motion is denied.

Paragraph 82

Defendant did not show this entire paragraph is subject to strike. Motion is denied.

Paragraph 115

Plaintiffs did not allege facts with the required specificity to support their prayer for punitive damages against an entity. Motion is granted with 15 days leave to amend.

The case management conference is continued to December 14, 2026 at 10:00 a.m. in Department C27. The Order to Show Cause re sanctions for failure to file a case management conference statement is discharged.

Defendant is ordered to give notice.